



File No.: EXP202404978

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 9, 2023, a complaint was filed with entry registration number ***REGISTRO.1 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

"(...) that he is a neighbor of the complained party and that this, without prior authorization from the Community of Owners where the respective homes of the parties are located, has installed a digital peephole with recording function, which is oriented towards the community landing where the homes of the parties are located, and is capable of capturing images of access to the home of the complaining party (...)"-page no. 1--.

He provides images of the digital peephole installed by the complained party and technical specifications of the installed digital peephole (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party on 03/07/23, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), is documented in the administrative file.

THIRD: On 14/07/23, a response was received from the complained party, providing a copy of a complaint filed with the Security Forces, which outlines various with the neighbor on the landing, describing situations of "threats," damage to private property, or "spillage of some type of irritating liquid" with harmful effects on their health and the residents of the home adjacent to that of the complaining party.

As documentation, a copy of the invoice for the device is provided (Frames 1-2 Documentary Annex).

FOURTH: On August 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was accepted for processing.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated 09/05/23 through which the "installation of a digital peephole without the consent of the Owners' Association" is reported (page no. 1).

A digital peephole is an electronic device that, instead of the conventional peephole (that wide-angle

lens or fisheye), has a small camera and an LCD-type screen.

On 14/07/23, a response was received from the complained party regarding the facts subject to forwarding, arguing that "they maintain conflicts with the complaining party" that have been the subject of a complaint to the State Security Forces.

A copy of the complaint to the National Police Force is attached, which states "that the neighbor of the building is spraying the landing area and garage with a toxic and strongly scented product" "all of which has caused them severe dizziness and vomiting," being assisted for this reason at a hospital center "which has recordings showing how they spray their vehicle in the garage area," causing damage to the paint.

This agency has extensively expressed its rejection of acts of vandalism of any nature (e.g., graffiti, throwing of fluids, destruction of doors or locks, throwing of waste, etc.) that are carried out furtively under the belief that the presumed author of such acts will not face any consequences.

Article 263 of the Penal Code states:

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"Whoever causes damage to another's property not covered by other titles of this Code shall be punished with a fine of six to twenty-four months, taking into account the economic condition of the victim and the amount of the damage."

Image capture devices have proven to be an effective means to prevent such situations, as the images can be transmitted to the nearest Security Forces and Corps or investigating judge, who is competent to assess them freely.

The described facts represent a situation framed within the described context, as the entrance area to the defendant's residence was allegedly sprayed with some type of product that produces harmful effects on health (e.g., ammonia, pepper spray, or similar), occurring in a situation of poor neighborhood coexistence for reasons unrelated to the jurisdictional framework of this agency.

Regarding the installed device, it serves as a traditional peephole, although some models have the capability to capture images when remaining in the area near the entrance door of the residence, allowing for the collection of evidence of events occurring in the area in question.

The landing area primarily affects both property owners, with sufficient distance between the doors to avoid activation of the system in their case, an aspect that remains at the owner's discretion in situations of danger as described and reported (e.g., damage to the door, graffiti, spraying the area around the door with toxic or flammable material, etc.).

Just as with other fundamental rights, the right to the protection of personal data (art. 18.4 CE) is not an absolute right, but has its limits, being subject to the principle of proportionality in case of conflict with other fundamental rights (e.g., the right to physical integrity as an example).

This agency takes into account the context of all that has occurred, as well as the existence of open judicial proceedings regarding the same, to consider the device a temporary measure proportionate to the described situation, as a restrictive interpretation of the norm could lead to a real risk situation for the defendant and the residents of the residence in question.

III

The principle of presumption of innocence prevents the imposition of an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning order and must be respected in the imposition of any sanctions, as

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The exercise of the ius puniendi in its various manifestations is conditioned by the presentation of evidence and a contradictory procedure in which the parties can defend their own positions. In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the conduct in question; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal. The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), since the exercise of the sanctioning right in any of its manifestations is conditioned by the presentation of evidence and a contradictory procedure in which the parties can defend their own positions.

In accordance with this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, and having analyzed the facts and evidence presented, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection or that justifies the removal of the device installed from its current location, considering the measure proportional to the described situation.

Given that the facts are in judicial proceedings, it is in that venue where the corresponding controversies should be resolved, and it is advisable to normalize the minimal neighborhood relations between the parties, avoiding the instrumentalization of this agency in issues that are insignificant from the perspective of data protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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